



U.S. Department
of Transportation
**Research and
Special Programs
Administration**

400 Seventh Street, S.W.
Washington, D.C. 20590

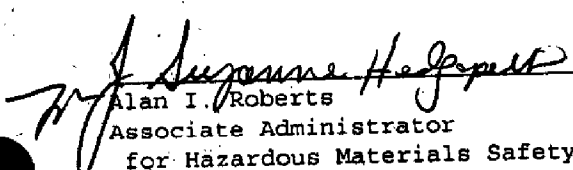
DOT-E 10732 (EXTENSION)
ORIGINAL May 4, 1992

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 10732 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to June 30, 1996. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.

JUL 29 1994

(DATE)


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

Dist: FHWA

EXEMPTION HOLDER

APPLICATION DATE

Burke Transport Corporation
Hutchinson, KS

July 11, 1994

ADVISORY

IF YOU ARE A HOLDER OF AN EXEMPTION THAT AUTHORIZES THE USE OF A PACKAGING WITH A MAXIMUM CAPACITY LESS THAN 450 L (119 GALLONS) OR A MAXIMUM NET MASS LESS THAN 400 KG (882 POUNDS), PLEASE BE ADVISED THAT YOUR EXEMPTION MAY NOT BE RENEWED BEYOND SEPTEMBER 30, 1996. IN ADDITION, NO NEW CONSTRUCTION OF PACKAGINGS WHICH FALL WITHIN THE NON-BULK CAPACITIES LISTED ABOVE ARE AUTHORIZED AFTER SEPTEMBER 30, 1994. THIS IS CONSISTENT WITH THE IMPLEMENTATION OF THE NEW PACKAGING REQUIREMENTS ADOPTED UNDER DOCKET HM-181. ANY APPLICATION SUBMITTED TO THIS OFFICE TO RENEW AN EXEMPTION BEYOND THE SEPTEMBER 30, 1996 DATE WILL BE DENIED UNLESS THE APPLICATION CONTAINS SUPPORTING INFORMATION TO JUSTIFY THE CONTINUATION OF THE EXEMPTION.



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

MAY 04 1992

DOT-E 10732

1. Burke Transport Corp., dba LPF/Griffin-Payne Equipment Co., Hutchinson, Kansas, is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to offer packages prescribed herein of flammable gases for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the use of a non-DOT specification container described as a mechanical displacement meter prover tank for the shipment of certain flammable gases, and provides no relief from any regulation other than as specifically stated.

2. BASIS. This exemption is based on LPF/Griffin-Payne Equipment Co.'s application dated October 3, 1991, and supplemental information dated January 6, 1992, and January 24, 1992, submitted in accordance with 49 CFR 107.103 and the public proceeding thereon.

3. HAZARDOUS MATERIALS (Descriptor and class). Liquefied petroleum gas or propane, classified as flammable gas.

4. PROPER SHIPPING NAME (49 CFR 172.101). Liquefied petroleum gas.

5. REGULATIONS AFFECTED. 49 CFR 173.304, 173.315.

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle.

7. SAFETY CONTROL MEASURES. Packaging prescribed is non-DOT specification packaging described as a mechanical displacement meter prover tank mounted on a truck trailer. The meter prover tank has a nominal water capacity of 108 gallons. The chemical and physical properties of all meter prover tank parts meet the requirements of the ASME Boiler and Pressure Vessel Code. The meter prover tank must be ASME Code "U" stamped. The meter prover tank is a pressure vessel made up of top and bottom sections, each 0.5 inches minimum thickness, SA516-70 carbon steel, welded together. The tank has 4 nozzles, SA105, and 4 vertical legs, all attached by welded construction. The maximum allowable working pressure is 250 psi. Pressure relief devices are not required. The meter prover tanks must be as shown in the photographs submitted with the application on file with the Office of Hazardous Materials Exemptions and Approvals (OHMEA).

MAY 04 1992

The following additional conditions shall apply:

- a. The bumper for the trailer must meet the requirements of 49 CFR 178.340-8(b) and 393.86.
- b. The pressure rating of the prover tank must be marked on the trailer.
- c. The prover tank must be drained to atmospheric pressure prior to transportation.
- d. During transportation, the pressure in the prover tank may not exceed 25% of the maximum service pressure.

8. SPECIAL PROVISIONS.

- a. A copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.
- b. Drivers must have been instructed as to necessary safeguards and proper procedure in the event of unusual delay, fire, or accident.
- c. Each prover tank must be visually inspected once a year and retested at least once every 5 years at not less than 150 percent of the maximum allowable service pressure.
- d. Motor carriers operating under the terms of this exemption must have a "Satisfactory" or "Conditional" safety rating as prescribed in 49 CFR Part 385.
- e. The outside of each prover tank must be plainly and durably marked "DOT-E 10732".

9. REPORTING REQUIREMENTS. Any incident involving loss of packaging contents or packaging failure must be reported to the Associate Administrator for Hazardous Materials Safety as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.)

10. EXPIRATION DATE. April 15, 1994

Issued at Washington, D.C.:



Alan I. Roberts
Associate Administrator for
Hazardous Materials Safety

MAY 04 1992

(DATE)

Address all inquiries to: Associate Administrator for Hazardous
Materials Safety, Research and Special Programs Administration,
U.S. Department of Transportation, Washington, D.C., 20590.

Dist: FHWA.